

24LBCV02823 24LBCV02823

County: los-angeles

Division: Civil Law and Motion

Department: S28

Hearing date: 2026-08-13

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Case Number: 24LBCV02823 Hearing Date: August 13, 2026 Dept: S28

BACKGROUND

On December 18, 2024, Plaintiff filed a complaint against Defendants St. Mary Medical Center Long Beach, Sarah Guevara, R.N., Sonny Bui, R.N.; Lisa Smith, R.N., Dr. Fazeel Shah, Dr. Chantal Strong and Does 1 through 20.

On July 18, 2025, Plaintiff filed a first amended complaint ("FAC").

On August 12, 2025, Plaintiff filed a request to dismiss Defendant Chantell Strong, M.D., from the action with prejudice. (See August 12, 2025 Request for Dismissal.)

On August 18, 2025, the Court granted the parties' joint stipulation to allow Plaintiff to file a second amended complaint ("SAC").

On August 27, 2025, Defendant Fazeel Shah, D.O., filed an answer to the SAC.

On August 28, 2025, Plaintiff filed a SAC against Defendants St. Mary Medical Center-Long Beach, Dr. Joseph Vardayo M.D., Dr. Fazeel Shah, D.O. alleging claims for medical negligence and discrimination based on medical condition under the Unruh Civil Rights Act.

On November 6, 2025, the Court sustained

Defendant Dignity Health dba St. Mary Medical Center (“Defendant” or “Dignity”)’s demurrer to the SAC’s second cause of action for Violation of the Unruh Act with 30 days leave to amend, and granted Defendant’s Motion to Strike with leave to amend.

On December 3, 2025, Plaintiff filed the Third-Amended Complaint (“TAC”).

On April 22, 2026, the Court sustained Defendant Dignity’s demurrer to the TAC’s second cause of action for Violation of the Unruh Act with 30 days leave to amend.

On May 18, 2026, Plaintiff filed the operative Fourth-Amended Complaint (“4AC”).

On June 22, 2026, Defendant Dignity filed the instant demurrer to the 4AC.

On July 29, 2026, Plaintiff filed opposition.

On August 6, 2026, Defendant Dignity filed a reply.

DISCUSSION

Applicable
Law

Code of Civil Procedure (“CCP”) section 430.10 subdivision (e) is grounds for a demurrer when the complaint fails to state facts sufficient to constitute a cause of action. CCP § 430.10(f) is grounds for a demurrer when the complaint is uncertain (vague and ambiguous). For purposes of ruling on a demurrer, material facts properly pleaded in the complaint must be taken as true. (*Serrano v. Priest* (1971) 5 Cal.3d 584, 491.)

A demurrer may challenge only defects that appear on the face of the pleading or from matters which are judicially noticeable. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 31; *Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994; California Practice Guide, Civil Procedure Before

Trial, ¶7:8 (The Rutter Group 2024).)

The function of a demurrer is to test the legal sufficiency of a complaint, but not the truthfulness of the allegations. (Donabedian v. Mercury Ins. Co., supra, 116 Cal.App.4th at 994; Lewis v. Safeway, Inc. (2015) 235 Cal.App.4th 385, 388; SJJC Aviation Services, LLC v. City of San Jose (2017) 12 Cal.App.5th 1043, 1051-1052; California Practice Guide, Civil Procedure Before Trial, ¶7:5 (The Rutter Group 2024).) Demurrers are to be sustained where a pleading fails to plead adequately any essential element of the cause of action. (Cantu v. Resolution Trust Corp. (1992) 4 Cal.App.4th 857, 879-80.)

“A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed (Code Civ. Proc., §§ 430.30, 430.70). The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action.” (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747; Accord McKenney v. Purepac Pharmaceutical Co. (2008) 162 Cal.App.4th 72, 79.) When considering demurrers, courts read the allegations liberally and in context. (McKenney, supra, 167 Cal.App.4th at 77; Taylor v. City of Los Angeles Dept. of Water and Power (2006) 144 Cal.App.4th 1216, 1228.)

“If the complaint states a cause of action under any theory, regardless of the title under which the factual basis for relief is stated, that aspect of the complaint is good against a demurrer.” (Quelimane Co. v. Stewart Title Guaranty Co. (1998) 19 Cal.4th 26, 38.)

Analysis

A. Second

Cause of Action for Violation of the Unruh Act

Civil Code

section 51, subdivision (b) states: “[a]ll persons within the jurisdiction of this state are free and equal, and no matter what their sex, race, color, religion, ancestry, national origin disability, medical condition, genetic information, marital status, sexual orientation, citizenship, primary language, or immigration status are entitled to the full and equal accommodations,

advantages, facilities, privileges, or services in all business establishments of every kind whatsoever.”

“A plaintiff

can recover under the Unruh Civil Rights Act on two alternate theories: (1) a violation of the ADA [citation]; or (2) denial of access to a business establishment based on intentional discrimination.” (Martin v. Thi E-Commerce, LLC (2023) 95 Cal.App.5th 521, 527.) “To state a claim under the Unruh Civil Rights Act, a plaintiff must allege the defendant is a business establishment that intentionally discriminates against and/or denies plaintiff full and equal treatment of a service, advantage, or accommodation based on plaintiff’s protected status.” (Liapes v. Facebook, Inc. (2023) 95 Cal.App.5th 910, 922.)

42 U.S. Code

§ 12210 states in relevant part that “the term ‘individual with a disability’ does not include an individual who is currently engaging in the illegal use of drugs, when the covered entity acts on the basis of such use.”

Plaintiff’s 4AC

alleges that he was admitted to Defendant’s hospital wherein he tested positive for methamphetamines and was subsequently denied adequate care based on his positive drug test. (4AC ¶¶ 8-25.) Plaintiff alleges that substance use disorder is a recognized medical condition under well-established clinical standards, and the Unruh Act prohibits hospitals from denying services based on such medical conditions. (4AC ¶¶ 36-40.) Plaintiff alleges that Defendant denied Plaintiff full and equal services and discriminated against him as a member of at least two protected classes under the Unruh Act: individuals with a medical condition (specifically, his actual or perceived use of methamphetamine, constituting substance use disorder) and individuals with a disability. Cal. Civ. Code § 51(b) (enumerating protected classes). (4AC ¶ 40.)

Defendant

argues that the 4AC now includes, for the first time, allegations that because plaintiff allegedly lost his leg as a result of the events at issue and now may be disabled, that somehow creates an ex post facto disability. Defendant contends that Plaintiff is trying to argue that although his disability did not exist at the time of the events giving rise to this Action, it should be considered by this Court in determining standing at the time of the events at issue. (4AC, ¶41.) Defendant asserts that this does not create standing to

enforce the Unruh Act as to events which preceded Plaintiff's disability.

Defendant further

argues that like the TAC, the 4AC still does not connect the alleged discrimination to Plaintiff's injury as the 4AC states that Plaintiff "was never labeled a drug user or mistreated as a result of that positive test." (4AC, ¶47.) Defendant also contends that Plaintiff's allegations that nurses updated each other about positive lab findings on shift change, their "cold" demeanor, and referring to plaintiff as a "meth head" do not support the claim that somehow this alleged conduct constitutes discrimination under the Unruh Act.

Here, again

as was the case with the TAC, the 4AC fails to adequately allege that Defendant intentionally discriminated against Plaintiff by denying Plaintiff access to full and equal accommodations based on his positive drug test, or based on his subsequently acquired disability due to the amputation of his left leg.

"To state a claim under the Unruh Civil Rights

Act, a plaintiff must allege the defendant is a business establishment that intentionally discriminates against and/or denies plaintiff full and equal treatment of a service, advantage, or accommodation based on plaintiff's protected status." (Liapes, supra, 95 Cal.App.5th at 922.)

The 4AC

alleges that Plaintiff received a positive drug test and then was not promptly treated for his complaints about his leg, but Plaintiff fails to allege how the positive methamphetamine test led to his complaints being ignored. Plaintiff alleges that (1) nursing staff routinely informed other nurses during shift changes that Plaintiff had tested positive for methamphetamines, (2) "that hospital personnel's demeanor was cold and Plaintiff was treated like a drug seeker," and (3) that he was called a "meth head" by a member of nursing staff. (4AC, ¶47.) Plaintiff states in a conclusory manner that his "requests were routinely ignored." These allegations still do not connect Plaintiff's positive drug test to his leg injury. Further, the exhibits attached to the 4AC still do not demonstrate how his care would have been different had Plaintiff not tested positive for methamphetamine on the drug test.

Additionally,

the 4AC fails to adequately allege that Plaintiff had a disability that is protected by the ADA. Plaintiff alleges that he was a member of at least two

protected classes under the Unruh Act during the events giving rise to this Action: individuals with a medical condition (specifically, his actual or perceived use of methamphetamine, constituting substance use disorder) and individuals with a disability. Cal. Civ. Code § 51(b) (enumerating protected classes). (4AC ¶¶ 40-41.) However, Plaintiff fails to support this allegation with any reasonable construction of the ADA.

As to

Plaintiff's new allegation that he is a person with a disability based on his acute limb ischemia and subsequent below knee amputation, Defendant is correct that because Plaintiff may have been rendered disabled after the events giving rise to the Action occurred, Plaintiff was not subject to Unruh Act protections before the disability developed. The Court agrees that Plaintiff's subsequent disability does not create standing to enforce the Unruh Act as to events which preceded the disability. Even if Plaintiff did properly allege that he was disabled due to acute limb ischemia and subsequent below knee amputation at the time he was admitted to Defendant's hospital, the 4AC fails to allege that disability as the basis for his inadequate care.

As to

Plaintiff's alleged actual or perceived use of methamphetamine, 42 U.S. Code § 12210 plainly states that "the term 'individual with a disability' does not include an individual who is currently engaging in the illegal use of drugs, when the covered entity acts on the basis of such use." In opposition, Plaintiff simultaneously argues that the 4AC alleges that substance use disorder ("SUD") is a recognized medical condition (4AC ¶ 48) and that Plaintiff was not actually using methamphetamine (4AC ¶ 9), despite his positive methamphetamine test. Overall, Plaintiff fails to clearly allege any exception from 42 U.S. Code § 12210.

In granting

leave to file a Fourth Amended Complaint, the Court stated that it would be the last grant of leave to amend. Accordingly, Defendant Dignity Health dba St. Mary Medical Center's Demurrer to the Second Cause of Action for Violation of the Unruh Civil Rights Act in Plaintiff's Fourth Amended Complaint is SUSTAINED WITHOUT LEAVE TO AMEND.

CONCLUSION

Defendant

Dignity Health dba St. Mary Medical Center's Demurrer to the Second Cause of
Action for Violation of the Unruh Civil Rights Act in Plaintiff's Fourth
Amended Complaint is SUSTAINED WITHOUT LEAVE TO AMEND.